OIT TRACKER

Terms of Service

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Publisher Jones Technical Enterprises, LLC

These Terms of Service ("Terms") are an agreement between you and Jones Technical Enterprises, LLC ("OIT Tracker," "we," "us," or "our"). They govern your use of the OIT Tracker mobile application and related services (collectively, the "Service").

By signing in, creating or using an account, accepting an invitation, starting a subscription, or otherwise using the Service, you agree to these Terms. If you do not agree, do not use the Service. If you accept these Terms for a minor or another person, you represent that you have legal authority to do so.

1. Medical and Safety Disclaimer

1.1 Tracking Tool Only

OIT Tracker is an information-organizing and tracking tool only. The Service is not a healthcare provider and does not provide medical advice, diagnosis, treatment, monitoring, clinical decision support, or emergency services. It is not a substitute for professional judgment or communication with a qualified healthcare provider.

1.2 Do Not Rely on the Service for Care Decisions

Always follow the instructions of the treating allergist or other qualified healthcare provider. Do not use the Service to decide whether, when, or how to administer, change, delay, skip, or stop a dose or treatment. Sickness mode records information; it does not provide dosing or illness guidance.

Information in the Service—including user-entered records, automated extractions, calculations, summaries, reminders, notifications, and displays—may be incomplete, inaccurate, delayed, or unavailable. Verify information against the original clinician-issued instructions and confirm questions with the treating healthcare provider. Keep an independent copy of any record needed for treatment or an emergency.

1.3 Emergencies

For a severe allergic reaction or other emergency, call 911 or the appropriate local emergency number immediately. Do not wait for or rely on the Service.

2. Eligibility, Accounts, and Sharing

2.1 Eligibility

The Service is intended for use in the United States. We do not represent that it is appropriate or available elsewhere.

A person who creates or co-owns a family account must be at least 18 years old and must have legal authority to manage the relevant records. An adult may use access granted by an authorized account owner. A person who is 13 through 17 years old may use the Service only through access initiated by their parent or legal guardian, who must agree to these Terms on the minor's behalf.

Children under 13 may not use the Service directly. An authorized adult may maintain information about a child of any age but must not allow a child under 13 to sign in, accept an invitation, enter information, or use another person's credentials.

You must provide accurate eligibility and account information and must not misrepresent or help another person misrepresent their age, authority, or eligibility.

2.2 Account Security

You are responsible for safeguarding your credentials, using only your own account, and taking reasonable steps to prevent unauthorized access. Do not share authentication credentials. Promptly notify us at **support@oittracker.com** if you believe an account or invitation has been compromised.

2.3 Shared Access

If you invite or authorize another person to access records, you represent that:

- You have authority to share the records and provide the recipient's contact information;
- The recipient is eligible and authorized to receive that access; and
- The permissions you select are appropriate.

An invited person must use their own account and agree to these Terms. Account roles, permissions, limits, and available sharing features are those shown in the Service or in the applicable purchase terms.

You are responsible for reviewing and revoking access when it is no longer appropriate. Revocation prevents future access through the Service but cannot recall information someone already viewed, copied, exported, printed, photographed, or otherwise retained.

3. Acceptable Use

You may use the Service only for its intended personal and family caregiving purposes and in compliance with these Terms and applicable law. You may not:

- Use the Service or submit information without the necessary authority, rights, or permissions;
- Use the Service for unlawful, fraudulent, abusive, or harmful activity;
- Access or attempt to access another person's account or records without authorization;
- Interfere with the Service, bypass access controls or usage limits, probe for vulnerabilities, or introduce malicious code;
- Use bots, scrapers, or other automated means to access the Service without our written permission, except for assistive technology or activity protected by law;
- Copy, modify, reverse engineer, decompile, disassemble, or derive source code from the Service, except to the extent applicable law does not permit that restriction;
- Infringe, misappropriate, or violate another person's privacy, confidentiality, intellectual-property, or other rights; or
- Resell, sublicense, or operate the Service as a commercial or clinical record system.

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4. User Data and Privacy

4.1 Your Rights and Our Permission

As between you and us, you retain your rights in information, documents, notes, and other content you submit to the Service ("User Data"). You grant us a limited, non-exclusive, worldwide license to host, copy, process, transmit, display, and otherwise use User Data only as reasonably necessary to operate, secure, and support the Service, comply with law, enforce these Terms, and carry out the practices described in our privacy policies. This license ends when the User Data is permanently deleted from our systems, except where continued retention is permitted or required by law.

You represent that you have all rights and permissions needed to submit User Data and authorize its use, including for information about a child, caregiver, healthcare provider, clinic, or document.

4.2 Accuracy and Copies

You are responsible for User Data you submit and for reviewing its accuracy. We do not independently verify medical information or guarantee that User Data will be preserved without loss or corruption. Keep independent copies of original documents and records you may need.

4.3 Privacy Policies

Our Privacy Policy explains our general personal-information practices. Our separate Consumer Health Data Privacy Policy provides additional disclosures and rights relating to consumer health data.

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5. Subscriptions and Payments

5.1 Purchase Terms

Some or all features require an auto-renewing subscription purchased through Apple. Before you confirm a purchase, the purchase flow displays the subscription's price, currency, billing period, included access, and any trial or promotional terms. Those transaction-specific terms control if they conflict with a general description in these Terms or elsewhere in the Service.

5.2 Renewal, Cancellation, and Refunds

Payment is charged to your Apple Account. A subscription automatically renews unless you cancel at least 24 hours before the end of the current billing period. Apple may charge the renewal within 24 hours before that period ends. You can manage or cancel a subscription through your Apple Account subscription settings.

Deleting the App or your OIT Tracker account does not cancel an Apple subscription. Canceling a subscription does not delete your OIT Tracker account or User Data. Refunds and billing disputes are handled by Apple under its policies and applicable law.

5.3 Trials, Changes, and Expiration

If a trial or promotion is offered, eligibility, duration, price after the offer, and cancellation deadline are disclosed before purchase. Unless the disclosed terms say otherwise, a trial converts to a paid subscription unless canceled before the deadline Apple displays. Unused trial time may be forfeited as disclosed by Apple.

Apple determines when subscription, price, billing-period, and plan changes take effect and whether notice, consent, credit, or proration applies. When a subscription expires, access to some functionality may be limited. Account and User Data retention are governed by our Privacy Policy, not by subscription status alone.

6. Ownership and App License

The Service—including its software, design, text, graphics, and other content, but excluding User Data—is owned by us or our licensors and is protected by intellectual-property laws. No ownership rights are transferred to you.

Unless Apple presents a different license when you acquire the App, the license to install and use it is governed by Apple's Standard Licensed Application End User License Agreement and Apple's applicable usage rules. These Terms govern the OIT Tracker account and Service and do not expand that app license. If the Apple agreement and these Terms conflict concerning the app license, the Apple agreement controls.

If you provide feedback or suggestions, you grant us a perpetual, worldwide, royalty-free right to use them without restriction or compensation to you.

7. Service and Third-Party Changes

We may update, modify, suspend, restrict, or discontinue all or part of the Service, including features and eligibility requirements. Where required by law, we will provide notice or honor applicable rights. We do not guarantee that any particular feature, integration, data format, or version will remain available.

The Service may depend on Apple and other third-party products or services. Their terms may also apply to you. We are not responsible for third-party products or services except to the extent applicable law provides otherwise.

8. Suspension and Termination

You may stop using the Service at any time. You may request account deletion through the Service or contact **support@oittracker.com** for assistance. Subscription cancellation is separate and is addressed in Section 5.

We may suspend or terminate access if you materially violate these Terms, fail to pay applicable charges, create a security or safety risk, use the Service unlawfully, or harm users, us, or third parties. We may also discontinue the Service. Where reasonably practicable, we will provide notice and an opportunity to cure, but we may act immediately when necessary to address fraud, unlawful conduct, security threats, or risk of harm.

After termination, your right to use the Service ends, subject to any limited access we choose or are required to provide. User Data is handled under our Privacy Policy. Sections that by their nature should survive—including Sections 1, 4, 6, 9, 10, 11, 12, and 14—will survive.

9. Warranty Disclaimers

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," WITH ALL FAULTS AND WITHOUT WARRANTIES OF ANY KIND. WE DISCLAIM ALL EXPRESS, IMPLIED, AND STATUTORY WARRANTIES, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, NON-INFRINGEMENT, ACCURACY, RELIABILITY, AVAILABILITY, AND SECURITY.

We do not warrant that the Service will be uninterrupted, error-free, timely, complete, secure, or free from loss, corruption, or harmful components. No oral or written statement creates a warranty unless these Terms expressly say that it does.

Some jurisdictions do not allow certain warranty exclusions, so some exclusions may not apply to you.

10. Limitation of Liability

10.1 Excluded Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, JONES TECHNICAL ENTERPRISES, LLC AND ITS AFFILIATES, MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, CONTRACTORS, AGENTS, LICENSORS, AND SERVICE PROVIDERS (COLLECTIVELY, THE "COMPANY PARTIES") WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES; LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, OR DATA; OR COST OF SUBSTITUTE SERVICES ARISING OUT OF OR RELATED TO THE SERVICE OR THESE TERMS.

The Company Parties do not assume responsibility for medical or emergency decisions, treatment changes, allergic reactions, or other health outcomes arising from use of or inability to use the Service, except to the extent liability cannot lawfully be excluded.

10.2 Liability Cap

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE COMPANY PARTIES' TOTAL AGGREGATE LIABILITY FOR ALL CLAIMS ARISING OUT OF OR RELATED TO THE SERVICE OR THESE TERMS WILL NOT EXCEED THE AMOUNT YOU PAID FOR THE SERVICE DURING THE 12 MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM. IF YOU PAID NOTHING, THE CAP IS $50.

These limitations apply regardless of the legal theory, whether a Company Party was advised that damages were possible, and even if a remedy fails of its essential purpose.

To the maximum extent permitted by law, claims relating to the Service or these Terms must be brought against Jones Technical Enterprises, LLC, not against an individual member, manager, officer, employee, contractor, or agent solely because of that person's relationship with the company.

10.3 Non-Waivable Rights

Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited. Depending on applicable law, this may include liability for fraud, willful misconduct, gross negligence, or death or personal injury caused by negligence. Some jurisdictions do not allow certain liability exclusions or caps, so some limitations may not apply to you.

11. Indemnification

To the extent permitted by law, you will defend, indemnify, and hold harmless the Company Parties from third-party claims, losses, liabilities, damages, judgments, and reasonable costs and attorneys' fees arising from:

- Your unlawful or unauthorized use of the Service;
- Your material violation of these Terms;
- User Data you submit without the necessary rights or permissions; or
- Your infringement or violation of a third party's rights.

We may control the defense of an indemnified claim. You will reasonably cooperate and may not settle a claim in a way that admits fault by, imposes obligations on, or fails to fully release a Company Party without our written consent.

12. Disputes and Governing Law

12.1 Informal Resolution

Before filing a formal dispute, please email **support@oittracker.com** with a description of the problem and requested resolution. The parties will attempt in good faith to resolve the dispute for 30 days. This process is not required if it would cause a legal filing deadline to expire or if a party seeks urgent injunctive relief.

12.2 Governing Law and Courts

Illinois law governs these Terms, without regard to conflict-of-law principles. This choice does not deprive you of non-waivable consumer protections provided by the law where you live.

Subject to any non-waivable right to bring a claim elsewhere, any dispute arising from the Service or these Terms must be brought exclusively in the Illinois state court located in the county of our principal office or the United States District Court whose district includes that office. You and we consent to the personal jurisdiction of those courts.

13. Changes to These Terms

We may update these Terms prospectively. We will provide notice of material changes before they take effect as required by law. If a change requires your affirmative consent, it will not apply to you unless you consent. Otherwise, continued use of the Service after the stated effective date constitutes acceptance of the updated Terms. If you do not agree, you must stop using the Service and cancel any subscription before the change takes effect.

Changes do not retroactively alter the terms governing a dispute that arose before the change took effect unless both parties agree or applicable law provides otherwise.

14. General Terms

These Terms, the transaction-specific terms presented at purchase, and the Apple agreement governing the app license constitute the entire agreement concerning the Service and replace prior or contemporaneous understandings on that subject. If there is a conflict, the transaction-specific terms control the transaction, the Apple agreement controls the app license, and these Terms control the remaining use of the Service.

If a provision is unenforceable, it will be enforced to the maximum extent permitted or severed, and the remaining provisions will continue in effect. Our failure to enforce a provision is not a waiver. Headings are for convenience only.

You may not assign these Terms without our written consent. We may assign them to an affiliate or in connection with a merger, financing, reorganization, sale of assets, or similar transaction.

We are not liable for delay or failure caused by events beyond our reasonable control. The Company Parties may enforce the protections provided to them in these Terms, and Apple may enforce its rights under its agreement. Otherwise, these Terms do not create third-party beneficiary rights.

15. Contact Us

Questions about these Terms may be sent to:

Jones Technical Enterprises, LLC

Email: **support@oittracker.com**